

24SMCV01661 24SMCV01661

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TENTATIVE RULING

July 21, 2026

24SMCV01661 (Vasquez v. American
Honda Motor Co.)

RELEVANT BACKGROUND

This is a lemon law action brought by Plaintiff Blanca Vasquez (Plaintiff) concerning a 2024 Honda CRV, (the Subject Vehicle), which Plaintiff allege was purchased new on October 8, 2023. (Knighton Decl. ¶ 2.) Plaintiff filed the instant action asserting claims for breach of express warranty and breach of implied warranty under the Song-Beverly Consumer Warranty Act (Act) against Defendant American Honda Motor Co., Inc. (Defendant)

INSTANT MOTION

On February 13, 2026, Defendant filed the instant motion to compel Plaintiff's vehicle inspection. Plaintiff filed an opposition. No reply has been filed.

DISCUSSION

I.

MOTION TO COMPEL VEHICLE INSPECTION

“Unless otherwise

limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

Any party may obtain

discovery by “inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action.” (Code Civ. Proc., § 2031.010, subd. (a).) If a party filing a response to a demand for inspection, copying, testing, or sampling thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance. (Id. § 2031.320, subd. (a).)

On receipt of a response

to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete; (2) A representation of inability to comply is inadequate, incomplete, or evasive; (3) An objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Id., subd. (h).) The motion shall be accompanied by a meet and confer declaration. (Id., subd. (b)(2).)

If a party filing a response to a

demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240,

and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance. (Code Civ. Proc., § 2031.320, subd. (a).) The Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Id., subd. (c).)

Here, on November 21, 2025, Defendant served a Notice of Vehicle Inspection, setting the inspection to take place on January 30, 2026. (Knighton Decl. ¶ 5; Exhibit A) On January 13, 2026, Plaintiff served objections to the Notice of Vehicle inspection. (Id. ¶ 7; Exhibit B). Defendant asserts that it has attempted to schedule an inspection of the Subject Vehicle, but its efforts have been obstructed by Plaintiff. (Knighton Decl. at ¶ 4-7.)

But Plaintiff's counsel has shown that he sent five communications to Defendant's counsel between January 23, 2026, and February 18, 2026, offering dates for the vehicle inspection and requesting a response. (Romero Decl., ¶¶ 6–10; Ex. 1.) Defendant's counsel did not respond. (Id. ¶ 12-14.) Defendant did not propose any alternative dates, did not explain any unavailability, and did not provide any communication. (Id.)

No reply has been filed. Defendant has failed to address why the instant motion was filed on February 13, 2026, given that Plaintiff's counsel sent correspondence to defense counsel on January 29, 2026, February 4, 2026, February 9, 2026, and February 18, 2026 to schedule the vehicle inspection. (Id., ¶¶ 6–14; Ex. 1 [emails dated January 29, 2026, February 4, 2026, February 9, 2026, and February 18, 2026].)

Defendant's motion to compel vehicle inspection is DENIED on the basis that Defendant's meet-and-confer efforts are inadequate. (Code Civ. Proc., § 20310, subd. (b)(2).)

Plaintiff requests that this Court award monetary sanctions in the amount of \$2,650.00 (5.3 hours x \$500.00). (Romero Decl., ¶¶ 14–16). The Court finds that sanctions are

appropriate, and the amount requested is reasonable, except that the amount should be reduced by 0.8 hours for the anticipated time since no reply was filed. (Code Civ. Proc., § 2031.310, subd. (h).)

Plaintiff's request for monetary sanctions is GRANTED, IN PART, in the reduced amount of \$2,250 (4.5 hours at \$500/hr.). Such amount to be paid by Defendant to Plaintiff's counsel within thirty days.